

Pfizer-BioNTech COVID-19 Vaccine

EUA 27034

**Response to CBER Information Request Received on
10 December 2020 Regarding the Relationship Between
Pfizer Inc. and BioNTech Manufacturing GmbH**

December 2020

1. INTRODUCTION

Reference is made to Request for Emergency Use Authorization (EUA 27034) submitted 20 November 2020 by Pfizer on behalf of BioNTech. Further reference is made to CBER's 10 December 2020 Information Request communicated by email from

(b) (6) (CBER), to Elisa Harkins (Pfizer, Inc.), regarding the relationship between Pfizer Inc. and BioNTech Manufacturing GmbH.

CBER comments are presented in ***bold italics*** and Pfizer-BioNTech's responses follow in plain text.

2. CBER COMMENT

Please submit to the EUA a document that explains the relationship between Pfizer, Inc. and BioNTech Manufacturing GmbH. This document should explain how Pfizer is assuring oversight of the aspects of the manufacturing process conducted by BioNTech and any other entity responsible for any aspect of manufacturing.

Sponsor Response

In mid-March 2020, Pfizer and BioNTech SE ("BioNTech") entered into an agreement (the "Collaboration Agreement") for the co-development and distribution of potential mRNA-based coronavirus vaccines aimed at preventing COVID-19 ("Vaccine Candidates") in all countries in the world, except China and its territories (the "Territory"). Under the Collaboration Agreement, the parties grant each other certain exclusive rights with respect to the research, development, manufacture and commercialization of the Vaccine Candidates in the Territory. Under the terms of the Collaboration Agreement, Pfizer has the exclusive right to commercialize Vaccine Candidates in the Territory, except for Turkey and Germany where BioNTech is the commercialization party. Furthermore, BioNTech, as the regulatory sponsor, has granted Pfizer the sole right to apply for and maintain any regulatory approvals filed with respect to the Vaccine Candidates in the U.S. Importantly, Pfizer is the designated agent for all interactions with the US Food and Drug Administration (FDA) and has the right to take the lead on all communications with and submissions to FDA. Indeed, BioNTech has delegated all responsibility for the conduct of the ongoing Phase 1/2/3 clinical study (C4591001) and all planned studies to be conducted under the IND.

Pfizer has executed a number of Quality Assurance Agreements with BioNTech Manufacturing GmbH, a wholly owned subsidiary of BioNTech SE, that outline the companies' respective roles and responsibilities with respect to current Good Manufacturing Practices ("cGMP") in the manufacture of the proposed Covid-19 vaccine (BNT162b2) (the "Product"). Through these agreements, Pfizer exercises oversight over the manufacturing process with respect to the Product, including, but not limited to, the points set forth below. Pfizer and BioNTech are each responsible for direct oversight of their respective manufacturing operations and CMO's, while Pfizer is responsible for the finished product release for US distribution.

- Both BioNTech and Pfizer are required to adhere to cGMP with respect to the manufacture of the Product and all intermediate materials used in the manufacture of the Product. Additionally, Pfizer has reviewed the appropriate GMP certifications for BioNTech and its contract manufacturers to ensure adherence to cGMPs;
- Both BioNTech and Pfizer have the right to audit each other's facilities used in the manufacture of the Product, and BioNTech has the obligation to facilitate Pfizer's audit of BioNTech's contract manufacturers involved in the manufacture of the Product;
- Approved written procedures are in place regarding Quality Unit oversight of subcontractors and suppliers that provide cGMP materials or services with respect to the Product;
- Approved written procedures are in place for manufacturing production with respect to the Product;
- Both BioNTech and Pfizer are obligated to share information required to prepare the Annual Product Quality Review, and Pfizer is responsible for preparing and submitting the Annual Product Quality Review;
- Both BioNTech and Pfizer are obligated to notify the other party of Product complaints that may impact compliance, quality, purity, safety, or efficacy of the Product;
- Both BioNTech and Pfizer are required to notify, review, and approve potential manufacturing process changes to ensure alignment including potential regulatory impact through the Change Management process; and
- Both BioNTech and Pfizer are required to notify the other party in the event of a Board of Health Inspection related to the Product, including outcomes and any CAPA required.

Document Approval Record

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Signed By:	Date(GMT)	Signing Capacity
Harkins Tull, Elisa	11-Dec-2020 16:11:09	Regulatory Affairs Approval